



April 19, 2023

The Office of Gov. Jay Inslee
PO Box 40002
Olympia, WA 98504-0002

RE: VETO REQUEST – HB 1155

Dear Governor Inslee:

We write to respectfully request that you **VETO** HB 1155.¹ The bill’s overly broad definition of “consumer health data” would impede Washingtonians from receiving useful and relevant information about products and services they may desire.

As defined, the term “consumer health data” would include any information that could possibly be related—however tangentially—to the “health status” of a consumer.² The definition could broadly sweep in the most benign data points, such as the fact that a consumer purchased shampoo at a local grocer, attended a fitness event, or signed up to receive promotional notices about specific clothing or footwear restocks. None of this information is inherently related to consumer health, but the bill’s broad definition of “consumer health data” could sweep such information into its ambit. In order to preserve data-driven benefits to Washington consumers, the bill should be rejected as long as the definition of the term “consumer health data” encompasses information that is unrelated to a health diagnosis or condition.

While we strongly agree with protecting Washingtonians’ privacy, HB 1155 takes an overly broad approach to the collection, use, and disclosure of any data that could possibly be related to or indicative of consumer health. We urge you to prevent such an expansive definition from forcing Washingtonians to forfeit their ability to receive benefits from the modern data-driven economy. We ask you to veto HB 1155.

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¹ Washington HB 1155 (Reg. Sess. 2023), located [here](#).

² *Id.* at Sec. 3(8).



Thank you for your consideration of this request.

Sincerely,

Christopher Oswald
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